

Sub Divisional Officer Vidyut Nagariye v. Hameed Khan

Allahabad High Court · Single Judge · 11 December 2018 · Writ - C No. 40736 of 2018 · **Notice issued on PLA billing-jurisdiction challenge**

HEADNOTE

Licensee officers challenged the Permanent Lok Adalat's entertainment of a billing dispute. The Single Judge issued notice, called for affidavits, and connected the writ with W.C. No. 39818 of 2018 to examine whether Section 50 of the Electricity Act, 2003 and Clause 7(10) of the U.P. Electricity Supply Code, 2005 oust that jurisdiction. No merits finding.

FACTUAL SUMMARY

The Sub-Divisional Officer (Electricity), Urban, and another licensee officer filed a writ petition in the Allahabad High Court against consumer Hameed Khan, challenging the Permanent Lok Adalat's entertainment of a billing dispute. They invoked Section 50 of the Electricity Act, 2003 and Clause 7(10) of the U.P. Electricity Supply Code, 2005 as barring that jurisdiction. On 11 December 2018 the petition came up for admission before a Single Judge.

HOLDING-UNITS

INTERPLAY · EA2003::50

permanent-lok-adalat-billing-jurisdiction

HOLDING

The Court entertained the licensee's writ to examine whether, in view of Section 50 of the Electricity Act, 2003 and Clause 7(10) of the U.P. Electricity Supply Code, 2005, the Permanent Lok Adalat had jurisdiction to entertain a billing dispute; held that the matter required consideration; issued notice to the consumer; and directed the petition to be connected and listed with Writ-C No. 39818 of 2018. No finding was recorded on the jurisdictional question. ¶ 1-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PERMANENT LOK ADALAT HAD JURISDICTION TO ENTERTAIN A BILLING DISPUTE IN VIEW OF SECTION 50 OF THE ELECTRICITY ACT, 2003 AND CLAUSE 7(10) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

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